

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRENDA PORTILLO,

Petitioner

VS.

FRANCISCO JAVIER GIL CHILACA,

Respondent

) Case Number: FDI-21-794902

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Brenda Portillo (Mother) and Respondent Francisco Gil (Father). The minor child subject to this proceeding is Melody Annabell Gil Portillo (DOB 12/31/10).
- 2) On April 8, 2026, Father filed a Request for Order in which he seeks a modification to the existing child custody and visitation orders. Father is seeking orders for joint legal and physical custody and for parenting time from Monday after school until Friday before school.
- 3) On May 11, 2026, the parties appeared, and the Court ordered the parties to attend FCS Mediation on June 24, 2026 and ordered a return hearing on July 14, 2026.
- 4) On June 24, 2026, the parties attended FCS Mediation and reached a partial agreement.

B. Findings and Order

- 1) This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

- 1 2) Father's unopposed motion is GRANTED.
- 2 3) Mother and Father shall have joint legal and joint physical custody of the minor child.
- 3 4) Father's request to modify the existing parenting plan is GRANTED. Commencing July 20,
- 4 2026, Father shall have care and custody of the minor child from Monday after school through
- 5 Friday morning drop off at school.
- 6 5) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.
- 7 6) The Court will prepare the Findings and Order After Hearing.